

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 4, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV00161

BANK OF AMERICA, N.A. v. DIAZ

**PLAINTIFF BANK OF AMERICA N.A.’S MOTION TO VACATE DISMISSAL
AND ENTER JUDGMENT PURSUANT TO STIPULATION (CCP § 664.6)**

Pursuant to Code of Civil Procedure section 664.6 and the settlement agreement between the parties (Sherrill Declaration, ¶¶ 2-7), judgment in the sum of \$10,007.15 will be entered in favor of plaintiff and against defendant Antonio G. Diaz. The court will sign the proposed order and judgment.

Plaintiff’s request for judicial notice of the stipulation filed in this case is granted.

No. 24CV03566

CROWN ASSET MANAGEMENT, LLC v. CHAVEZ

DEFENDANT CHAVEZ CALDERON’S MOTION FOR RECONSIDERATION

The motion is denied. The minute order on defendant’s motion to set aside the default indicates there were no appearances and no objection to the tentative ruling. Defendant now submits a motion for reconsideration that he failed to appear on June 15, 2026, because he was in the hospital until June 17, 2026. However, this motion, much like his last one, fails to comply with any rules of court or statutory motion requirements (no proof of service, no declaration with evidentiary support) and the Court has no choice but to deny it.